

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #14	CCRB Case #: 201706935	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 03/30/2017 12:30 AM	Location of Incident: 105th Precinct stationhouse	18 Mo. SOL 9/30/2018	Precinct: 105
Date/Time CV Reported Wed, 04/05/2017 6:37 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 04/05/2017 6:37 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Freeman	26096	919071	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Fuchsman	20091	925323	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Freeman	Abuse: PO Michael Freeman did not process § 87(2)(b)s complaint regarding officers.	A . Unsubstantiated

Case Summary

On April 5, 2017, § 87(2)(b) filed this complaint via the CCRB's website.

On March 30, 2017, at approximately 12:15 a.m., § 87(2)(b) went to the 105th Precinct and spoke to PO Michael Freeman of that command, who allegedly did not process § 87(2)(b)'s complaint regarding officers (**Allegation A: Abuse of Authority, unsubstantiated**). No summons or arrest resulted from this incident.

There is no video evidence in this case.

Findings and Recommendations

Allegation A – Abuse of Authority: PO Michael Freeman did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(b) (Board Review 01, Board Review 02) testified that upon his arrival to the 105th Precinct stationhouse, he spoke to PO Freeman, identified by the investigation, who was working at a small desk located to the left of the main stationhouse front desk. § 87(2)(b) informed PO Freeman that he wanted to file a complaint regarding officers who he had interacted with earlier that night. PO Freeman allegedly provided the CCRB's phone number to § 87(2)(b) but refused to process § 87(2)(b)'s complaint. § 87(2)(b) told PO Freeman that he wanted to file the complaint at the stationhouse. PO Freeman allegedly replied "no" and again instructed § 87(2)(b) to call the CCRB. § 87(2)(b) did not speak with anyone else at the stationhouse and left without his complaint being processed.

PO Freeman (Board Review 03), the telephone switchboard operator, did not recall this incident, but denied that he refused to process § 87(2)(b)'s complaint. PO Fuschman (Board Review 04), the assistant desk officer, did not recall this incident. The CCRB was unable to interview Sgt. Chen, the desk sergeant, as he retired from service on December 8, 2017 (Board Review 05).

Despite PO Freeman's lack of recollection, a call placed to the 105th Precinct stationhouse front desk revealed that the telephone switchboard operator at that stationhouse is seated at a separate small desk, located to the left of the larger main stationhouse front desk. The 105th Precinct command log (Board Review 09) contains no information regarding § 87(2)(b) or the complaint he said he wished to file.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the third CCRB complaint involving § 87(2)(b) (Board Review 06). § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- PO Freeman has been a member-of-the-service for 20 years. This is his first CCRB complaint.

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation and this case was sent to the Mediation Unit on August 9, 2017. It was returned to the Investigations Division on October 4, 2017.
- As of December 26, 2017, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office (Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: #14

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date